

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

Civil Code section 8488 allows the prevailing party at a hearing on a petition for a mechanic's lien to recover reasonable attorney's fees. (Civ. Code, § 8488, subd. (c).) The record reflects there was no hearing on a mechanic's lien and thus the court denies defendant's motion as to this theory.

Defendant cites *Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124 for the proposition that because plaintiff prayed for attorney's fees in the operative complaint then defendant is also entitled to recover attorney's fees. However, the case does not stand for such a proposition especially when plaintiff would not be entitled to recover attorney's fees pursuant to Civil Code section 1717 as he was not a signatory to the contract.

Finally, defendant contends she is entitled to attorney's fees because plaintiff dismissed the action before the court ruled on her motion for sanctions. However, this does not provide a basis to award attorney's fees as the prevailing party. Nor is the motion for sanctions before the court.

Accordingly, defendant's motion is denied in its entirety.

3. M-CV-0091794 LAW OFC. OF ALLAN FRUMKIN v. ROGERS, WARREN

Plaintiff's Motion for Summary Judgment

Plaintiff moves for summary judgment to its complaint for breach of contract. A motion for summary judgment or adjudication may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) Plaintiff, as the moving party, meets their burden if they prove each element of the cause of action. (*Id.* subd. (p)(1).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact exists as to the cause of action. (*Ibid.*) In reviewing a motion for summary judgment or adjudication, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

Plaintiff's breach of contract cause of action arises from defendant's alleged nonpayment for legal services rendered. Attorneys seeking to recover unpaid fees for legal services rendered for a former client must "forward a written notice to the client prior to or at the time of service of summons or claim in an action against the client, or prior to or at the commencement of any other proceeding against the client under a

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contract between attorney and client which provides for an alternative to arbitration under this article, for recovery of fees, costs, or both. The written notice shall be in the form that the board of trustees prescribes, and shall include a statement of the client's right to arbitration under this article. Failure to give this notice shall be a ground for the dismissal of the action or other proceeding.” (Bus. & Prof. Code, § 6201; Ca. St. Rules of State Bar Rule 3.501.)

Here, plaintiff does not meet its burden to establish the breach of contract cause of action because there is insufficient evidence that plaintiff provided defendant with the required notice. Accordingly, plaintiff's motion for summary judgment is denied.

4. M-CV-0096408 CAMPUS OAKS APT. v. PROVENCIO, ERICKA

Defendant's Motion to Set Aside Default

Defendant moves to set aside the default entered against her on April 8, 2026.

On May 5, 2026, the court granted defendant's ex parte application for stay pending the hearing on her motion to set aside default.

Code of Civil Procedure section 473, subdivision (b) dictates that an “[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted.” (Code Civ. Proc., § 473, subd. (b).)

Here, defendant's motion is not accompanied by a copy of the answer or other responsive pleading.

Additionally, the court's order granting defendant's ex parte application for stay required defendant to serve the court's order and her application and supporting papers on plaintiff by May 6, 2026, and file a proof of service with the court by May 6, 2026, indicating service had been completed. A review of the court record reflects no proof of service has been filed indicating service was effectuated.

Accordingly, defendant's motion is denied without prejudice.

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